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End of the rainbow? New bill seeks to ban food additives

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By Christie Counts, April 25, 2023

California Bill 418 seeks to prohibit the manufacturing and selling of certain additives in food and candies, including skittles.

Jesse Gabriel, a Democratic assembly member, introduced legislation in February that would ban the sale of processed foods in California that contain certain chemicals he claims are toxic. These chemicals include brominated vegetable oil, potassium bromate, propylparaben, red dye No. 3 and titanium dioxide.

According to Consumer Reports these chemicals have been linked to serious health problems such as a higher risk of cancer, nervous system damage and hyperactivity.

The Legislative Counsel’s Digest states the bill would prohibit a person or entity from manufacturing, selling, delivering, distributing, holding or offering for sale in commerce a food product that contains any previously specified substance. If passed, the bill would go into effect January 1, 2025.

Gabriel informed Today news the goal of the bill is to not outright ban companies that produce products like Skittles but to have these companies make “minor modifications to their recipes” so they use less dangerous and toxic chemicals.

Brominated vegetable oil is used in some beverages to keep a citrus flavoring from floating to the top. Potassium bromate is added to baked goods to strengthen the dough and help it rise. Propylparaben is used for antimicrobial food preservation. Titanium dioxide is a powder used as a white colorant or to add texture to candies in others processed foods.

Red dye No. 3 has received the most criticism since it is included as an ingredient in popular a multitude of candies such as Skittles, Nerds and Trolli gummies. It is also seen in other food products such as protein shakes, instant rice and potato products and boxed cake mixes.

Xu Yang an assistant professor for the Nutrition and Food Science Department at Cal Poly Pomona commented on the evaluation of food additives.

“I think the synthetic red No. 3 is intriguing people the most because it is in a lot of the candies for instance, Skittles and a lot of other candies,” said Yang. “If they use synthetic dyes, it is very likely red No. 3 will be on the label.”

The standard practice for an additive to be approved for regulatory use in food must go through rigorous testing through the Food and Drug Administration unless the substance is generally recognized as safe among experts qualified by scientific training.

Jackson Gray | The Poly Post

According to EWG analysis, almost 99% of all food chemicals introduced since 2000 were greenlighted for use by the food and chemical industry, not by the FDA.

There is a loophole often used in the U.S. Food and Drug Administration’s Federal Food, Drug and Cosmetic Act, or Generally Recognized as Safe rule. The GRAS loophole allows additives to not go through the FDA if they are

recognized among qualified experts as adequately shown to be safe under conditions of its intended use.

“Food scientists is only one piece of the puzzle,” said Yang. “There’s always regulatory personels in these major food industries. They can also help collaborate western food scientists and eventually hopefully find a solution to continue their efforts in these new products.”

The National Confectioners Association, an American trade organization that promotes chocolate, candy, gum and mints, released a statement March 23 in opposition to the bill. They stated chocolate and candy are safe to enjoy as they have been for the past decades and that “… there is no evidence to support banning the ingredients listed in the bill.”

The association also went on to state it ensures its ingredients comply with the FDA’s strictest safety standards.

Yang also explained how any chemical or additive can be toxic depending on quantity, and there is often a multitude of studies done to make sure none need to be immediately exonerated.

“Every component, every chemical can be toxic to us depending on their volume,” said Yang. “There is usually a certain relevant studies out their proving these food additives may be a problem and there may be issues in them.”

Yang elaborated that California may want to issue this bill because Europeans have banned these chemicals and now there is a trend of people questioning the safety of these additives in their food. Policymakers are then taking these concerns into consideration and most likely addressing qualified publications in order to create the bill and ban the use of these certain additives.

The bill states that the chemicals listed are banned in the European Union due to scientific studies that showed them to be harmful.

With many of the chemicals supposedly being linked to cancer and multiple health issues in adults, students at CPP shared their thoughts on the proposed legislation that would regulate and ban the additives.

“I have heard about this debate for a while, especially since people are talking about how other countries have these ingredients or chemicals banned and we are the only country that pretty much doesn’t,” said Krizia Canas, psychology student. “I think it will positively impact our state if we banned these products in food and replace them for something more healthy.”

While the bill aims to promote healthier eating habits and reduce consumption of harmful chemicals, its potential impact on the availability and taste of popular candies has left some students disappointed but also grateful the government is looking out for their health.

“I think it’s important for them to look at chemicals and see what’s used in certain food products because it could be really bad for our immune system and health in general,” said Sophia Morales, a liberal studies student. “It is important to understand what’s going in our bodies and I think this bill could be good in a way because it’s going to ban some of the chemicals that are possibly dangerous to us.”

Feature image by Jackson Gray

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